



App Development — Policy & Terms

Epitome Innovations · RC 2749585 · version 1.1

A working commercial policy, not a legal instrument. It is written to be read and signed by a normal business owner, and it applies to clients **in Nigeria and abroad**. See **§13** for currency, governing law and how international engagements are handled — the wording does not change depending on where you are. If you want it formally reviewed once, have a lawyer qualified in the governing law in §13 look at it.

1. What this policy covers

It applies to every application Epitome Innovations ("we", "us") designs, builds, delivers, maintains or supports for a client ("you"). It works alongside — and does not replace — the **Scope Sheet** for your specific project, which both parties sign before any work begins.

2. "Delivered" means what the Scope Sheet says. Nothing more.

We build to a written Scope Sheet listing the screens, features and platforms agreed.

Anything not written in that Scope Sheet is not included — not because we are being difficult, but because an app with no agreed boundary is an app that never finishes. Additions are welcome; they are simply quoted as new work before they start.

3. Developer accounts belong to you — always

You own and control the Apple and Google developer accounts the app is published under. We never publish a client app under our own accounts.

This matters to you as much as to us:

- The app is **yours**. If we ever part ways, it stays yours and stays live.
- Store compliance obligations — which are annual and continuous — sit with the account holder.
- You pay the store fees directly. We do not absorb or resell them.

We will help you set the accounts up on day one. Expect roughly **US\$99/year for Apple** and a one-time **~US\$25 for Google Play**; confirm current pricing with the stores at sign up.

4. Ownership and handover

On final payment you own the application, its source code and its assets. We hand over:

- the source code repository
- all account credentials and access
- a written handover note covering how it is hosted, deployed and updated

We keep no lock on your product. We may reference the work publicly as a portfolio item unless you ask us in writing not to.

5. The defect warranty

For **30 days from launch**, we fix free of charge any defect where the app does not do what the signed Scope Sheet says it does.

This covers: crashes, broken screens, features behaving contrary to the Scope Sheet, and failures introduced by our own work.

This does not cover: new features, changed requirements, content changes, problems caused by your own edits or third-party services you connected, or anything arising from a device or operating system that did not exist when the Scope Sheet was signed.

After 30 days, fixes fall under the maintenance plan (§6) or are quoted as new work.

6. Maintenance — required for native mobile apps

A maintenance plan is a condition of every native mobile app we deliver, not an optional extra.

You cannot buy a native app from us without one, because a native app that nobody maintains does not simply stay still — it stops working. Both stores require ongoing rebuilds against new operating system versions, and an app that falls behind gets hidden from new users and eventually removed.

The maintenance fee is quoted for your project — we do not publish a rate card.

No two apps are the same, so no two maintenance plans cost the same. What drives the figure is how many platforms you are on, how many outside services the app depends on, and how much change you expect in a year.

You will see the exact monthly fee in your Scope Sheet, agreed and signed **before any work starts**. It does not change mid-project.

The maintenance plan covers:

- keeping the app compliant with current Apple and Google requirements
- critical bug fixes
- a monthly change allowance of **2 hours** for small adjustments, agreed in your Scope Sheet
- keeping third-party services inside the app working

It does not cover new features, redesigns, new platforms, or content updates beyond the allowance. Those are quoted separately, in writing, and agreed before any work starts. Nothing is ever invoiced that you have not approved first.

Web applications do not require a maintenance plan (see §11) — though one is available.

7. What is never included, in any quote

Unless the Scope Sheet says otherwise:

- new features and new screens
- a second platform (an Android app is not included because an iOS app was built)
- store fees, hosting, domains, databases, or any third-party subscription
- content writing, image sourcing, or translation
- publishing the app to any store beyond those named in the Scope Sheet
- training beyond one handover session

Each of these is a fresh quote. None of them is a surprise — they are all here in writing.

8. Costs you pay directly

These are yours, not ours, and we will tell you the amounts before you commit:

- Apple / Google developer account fees
- hosting, database and storage
- third-party services the app depends on (payments, messaging, maps, push notifications)
- any store promotion or advertising

If a third-party service you rely on raises its prices or shuts down, we will tell you and propose options — we cannot carry that cost for you.

9. If maintenance stops — the sunset rule

If the maintenance plan is cancelled or unpaid, we stop maintaining the app. Plainly, what happens next:

1. The app keeps working until an operating system or store change breaks it.
2. It will not be updated to meet new store requirements.
3. Once it falls far enough behind, the stores may hide it from new users or remove it entirely.
4. The code remains yours. You are free to have anyone else maintain it — that is your right.

We are not responsible for the app's removal from a store if maintenance has been cancelled.

Stopping maintenance is your decision and it is a legitimate one; this paragraph exists so nobody is surprised by the consequence.

10. Store approval is not guaranteed — by anyone

Apple and Google review every submission and **can refuse an app for reasons outside our control** — including their own policy changes.

We build to their published requirements and we handle the submission process. But **we cannot promise that either store will approve or keep approving your app**. No developer in the world can. If a store rejects a submission, we will fix what is fixable against their feedback — that work is not extra if the rejection is for a reason within the Scope Sheet.

11. Web applications work differently — and are the better first step

Web apps (client portals, dashboards, internal tools, booking systems) are delivered under different terms, and genuinely lower risk for you:

- **no app store gatekeeper** — nobody can delist your tool
- they run in a browser, on any phone or computer, with nothing to install
- they degrade gracefully — they keep working as browsers and systems evolve
- updates ship instantly, with no review queue

No maintenance plan is required for a web app. It is available if you want ongoing changes, but the app will not die without it.

We recommend every client start here and graduate to native mobile later, once the tool has proven itself and the costs are justified.

12. Data protection

If your app collects personal data — customer names, phone numbers, payments — **you are the data controller** and the legal responsibility under the **Nigeria Data Protection Act** is yours. If you serve users in the **EU or UK, the GDPR or UK GDPR applies on top of it**, and the obligations on you are stricter.

We build with reasonable security practice and we will tell you plainly what data the app stores and where. **If your users are in the EU or UK, we will supply a written data processing agreement** covering what we handle on your behalf — your client will expect one, and most will make it a condition of the project. We do not accept liability for how you choose to use, share or retain that data.

13. Clients outside Nigeria — currency, law and disputes

We work with clients anywhere in the world. Three things change when you are outside Nigeria.

Currency. Engagements with clients outside Nigeria are quoted and invoiced in **US dollars** (or another currency agreed in the Scope Sheet). Naira bank transfer is for Nigerian clients.

Governing law. This agreement is governed by the **laws of the Federal Republic of Nigeria**, where Epitome Innovations is registered. That does not change because you are abroad. It means both parties know in advance which rules we are playing by, instead of discovering it during a dispute.

Disputes. We resolve problems by talking, and nearly all of them are settled that way. If one cannot be, both parties agree to **30 days of good-faith negotiation first**. Only after that may

either party take the matter to the courts of Nigeria — or, where the Scope Sheet says so for a larger engagement, to binding arbitration seated in Lagos and conducted in English.

What actually protects you — and us: the payment structure, not the courtroom. Read this carefully, because it matters more than everything above. Enforcing a small contract across borders is slow, expensive and rarely worth doing for either side. So we do not rely on courts. We rely on the payment schedule in the Scope Sheet: a deposit before work begins, a payment at each milestone, and **no final handover until the final payment has cleared.** That protects you from paying for nothing, and it protects us from delivering for nothing — far more effectively than any jurisdiction clause ever could.

Taxes and withholding. Each party is responsible for their own taxes. If your country requires **withholding tax** on payments to a Nigerian company, you must tell us **before the project starts** so we can agree how it is handled. We do not absorb withholding tax after the fact.

14. Acceptance

By signing below, both parties agree to this policy and to the Scope Sheet attached to it.

Client

Name: Signature: Date:

Epitome Innovations

Name: Signature: Date:

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